

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

September 14, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS: Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Ms. Ash and Ms. Case. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Rededication ceremony of the memorial honoring Vietnam Veterans from Laramie County who never returned from Southeast Asia and Wyoming MIA's not returned. Mayor Kaysen recessed the meeting in Council Chambers for the ceremony, which was held at Constitution Square, located immediately east of the Municipal Building. Following closure of the ceremony, Mayor Kaysen reconvened the meeting in Council Chambers at 6:17 p.m.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON AUGUST 24, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON September 8, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Mr. Brown and Mr. Valdez each declared a conflict of interest (business interests) due to vouchers payable to Ameri-Tech HVAC Services (\$85.00) and radio station KYOY (\$140.00) respectively, and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

"AN ORDINANCE SUBMITTING TO THE QUALIFIED PROPERTY OWNERS OF REAL PROPERTY WITHIN THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT OF CHEYENNE, WYOMING, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, AT A SPECIAL ELECTION ON TUESDAY, OCTOBER 20, 2009, THE FOLLOWING QUESTION: 'SHALL A SPECIAL ASSESSMENT OF TEN (10) MILLS BE LEVIED UPON THE ASSESSED VALUE OF REAL PROPERTY WITHIN

THE BOUNDARIES OF THE CHEYENNE DOWNTOWN DEVELOPMENT AUTHORITY DISTRICT, EXCLUDING REAL PROPERTY USED EXCLUSIVELY FOR RESIDENTIAL PURPOSES, FOR A PERIOD OF FOUR (4) YEARS PURSUANT TO THE PROVISIONS OF WYO. STAT. § 15-9-217(b) AND (c) FOR THE PURPOSES OF (1) ADMINISTRATIVE COSTS; (2) LANDSCAPING OR MAINTENANCE OF PUBLIC AREAS; (3) PLANNING OR MANAGEMENT OF DEVELOPMENT OR IMPROVEMENT ACTIVITIES; (4) PROMOTION OF PUBLIC EVENTS; AND (5) ACTIVITIES IN SUPPORT OF BUSINESS RECRUITMENT AND DEVELOPMENT?” Reporting for Finance Committee, Mr. Valdez moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#3869)

“AN ORDINANCE CREATING SECTION 10.24.170, DRIVING WHILE USING CELLULAR TELEPHONE PROHIBITED; EXCEPTIONS, OF CHAPTER 10.24, RULES OF THE ROAD GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” John Fafoutakis, Eric Miller and John Palmer spoke generally in opposition to the proposed ordinance, and expressed concerns on use of cell phones for text messaging while driving, local governmental control, ordinance enforcement, distractive driving scenarios, violations constituting a primary vs. secondary offense, and current traffic laws in place that might be utilized instead of the proposed ordinance. Upon inquiry, Capt. Jeff Schulz, Interim Police Chief, provided information on careless driving violations resulting in citations. Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Mr. Pierson moved to amend by indicating that violations of the ordinance be enforced as a secondary offense, seconded by Mr. Valdez. Mr. Fafoutakis, Mr. Palmer, Mr. Miller and David Hallam spoke in support of the amendment. Reverend Michaela Pena spoke in opposition to the amendment. Discussion included the purpose of violations constituting a primary offense, enforcement of secondary vs. primary offenses, concern with passing laws due to irresponsible drivers, other distractions affecting safe driving practices, notification to the public and community visitors of ordinance restrictions, and balancing of rights and freedoms for safety purposes. Motion to amend failed. Voting “yes” – Mr. Pierson and Mr. Valdez. Voting “no” – Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne, Mr. Spiker and Mayor Kaysen. Comments followed regarding enforcement as a primary offense and effect on local residents, statistics supporting cell phone usage as the cause of many accidents, protection of drivers and passengers, community signage, and ordinance provision allowing use of cell phones with hands free devices while driving. Upon inquiry, Captain Schulz advised the ordinance, if approved, will be enforced like every other traffic ordinance on the books, and commented on probable cause scenarios as noted by officers involving violations. Mayor Kaysen clarified signs will be posted around the City and entry ways into Cheyenne alerting residents and those visiting of the cell phone ordinance, and stated exact sites have not yet been determined. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Pierson voting “no”. (#3870)

“AN ORDINANCE REPEALING SECTION 9.08.030, GAMBLING-PROHIBITED-EXCEPTIONS, AND SECTION 9.08.040, VIOLATIONS BY OWNER OR OCCUPANT OF PREMISES WHERE GAMBLING CONDUCTED, OF TITLE 9, PUBLIC PEACE AND WELFARE, CHAPTER 9.08, OFFENSES AGAINST PUBLIC PEACE AND DECENCY, OF THE CHEYENNE CITY CODE.” Mr. Brown reported there was no recommendation on the item from Public Services Committee. Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Discussion followed on the most recent change in state law concerning gambling and statute interpretation; enforcement concerns with current City code; wording of state law involving “bona fide

social relationship”; concerns with gambling being conducted in businesses within City limits; City ordinances being more restrictive than state statutes; enforcement of the current ordinance, which makes football pools and charity fund-raising events, such as casino nights, illegal; finding a balance between allowing certain types of gambling vs. total restriction; interpretation of state statute; allowable advertising of gambling events and activities per state law; revising the current ordinance to allow charities to conduct fund- raisers, and protecting residents. Upon inquiry, City Attorney Dan White clarified there are no dollar limits on gambling betting amounts specified in state statute. He advised oversight would be provided by law enforcement; provided his understanding of what constitutes a “bona fide social relationship” relative to a business sponsored gambling activity and, in response to a question referencing the City’s enforcement authority, stated the gambling statutes are included in the “Crimes and Offenses” section of state statute and that penalties could be enforced by the police department. He further reviewed gambling state statutes and advertising restrictions. Mr. Spiker moved to postpone for 60 days, seconded by Mr. Collins. John Fafoutakis spoke in support of postponement; Donn Edmunds commented on undesirable effects of commercial-type gambling and spoke in support of revising the current ordinance, and Eric Miller spoke in opposition to gambling generally and in support of postponement. Upon request for clarification of the exact date involved with the motion to postpone, Mr. Spiker modified his motion, with concurrence by Mr. Collins as second to the motion, to indicate postponement would be to Nov. 23, 2009. Upon inquiry, City Clerk Carol Intlekofer clarified if an allowable gambling activity takes place within the dispensing room of an establishment that holds a City liquor license, the hours of operation for the dispensing room must be complied with pursuant to City Code. Further discussion followed on enforcement of the current ordinance vs. state statutes, professional gambling not allowed under state law, and review of the current ordinance for possible revision during the postponement period. Upon inquiry, Captain Jeff Schulz, Interim Police Chief, advised police officers will continue to enforce the ordinance as it has been until the proposed ordinance is either approved or disapproved. Motion to postpone to Nov. 23, 2009 carried. Voting “yes” – all members of the governing body present with the exception of Mr. Brown voting “no”.

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:05 pm.

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.68, BODY ART ESTABLISHMENTS AND OPERATIONS, OF THE CODE OF THE CITY OF CHEYENNE” -- referred to Finance Committee (sponsor - Mr. Valdez).

“AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.04, BUSINESS LICENSES GENERALLY, SECTION 5.04.030, TYPES OF BUSINESSES, ACTIVITIES AND EVENTS, AND CHAPTER 5.08, BUSINESS LICENSE FEES, SECTION 5.08.250, BODY ART ESTABLISHMENTS AND OPERATIONS, OF THE CODE OF THE CITY OF CHEYENNE, PERTAINING TO BODY ARTISTS AND PERMIT FEES” -- referred to Finance Committee (sponsor - Mr. Valdez).

“AN ORDINANCE DELETING SECTION 10.56.060, PERMIT FEE-PAYMENT, AND SECTION 10.56.100, INSTALLATION COST-PAYMENT, OF CHAPTER 10.56, HANDICAPPED PARKING SPACES, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE” -- referred to Finance Committee (sponsor - Ms. Ash).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO MR-1 MEDIUM DENSITY RESIDENTIAL-ESTABLISHED DISTRICT FOR LOTS 1- 8, BLOCK ONE; LOTS 1- 8, BLOCK TWO; LOTS 1- 4, BLOCK THREE; GOODWATER ADDITION, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO VAN BUREN AVENUE, SOUTH OF DELL RANGE BOULEVARD)” -- referred to Public Services Committee (sponsor - Mr. Brown).

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE, BY CHANGING THE ZONING CLASSIFICATION FROM PUD PLANNED UNIT DEVELOPMENT DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR ALL OF BLOCK ONE, CATHEDRAL COMMONS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF YELLOWSTONE ROAD AND GARDENIA DRIVE)” -- referred to Public Services Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION ADOPTING AN AMENDMENT TO THE FUTURE LAND USE PLAN MAP IN PLANCHYENNE, THE MASTER PLAN FOR THE CITY OF CHEYENNE AND THE COMPREHENSIVE PLAN FOR PORTIONS OF LARAMIE COUNTY, AMENDING THE LAND USE PLAN MAP CATEGORY FROM OPEN SPACE AND PARKS TO COMMUNITY BUSINESS FOR APPROXIMATELY 28 ACRES AT THE SOUTHEAST QUADRANT OF THE INTERSECTION OF WINDMILL ROAD AND DELL RANGE BOULEVARD” -- referred to Public Services Committee (postponed from Aug 10, 2009).

[CA] “A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2010 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF WYO. STAT. §16-4-112 AND §16-4-113” -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] “A RESOLUTION REPEALING RESOLUTION NO. 5084; CREATING A NEW RESOLUTION ESTABLISHING GOLF COURSE USER FEES AND CATEGORIES FOR THE AIRPORT GOLF COURSE AND KINGHAM PRAIRIE VIEW GOLF COURSE; AND PROVIDING FOR THE DIVISION OF REVENUES FROM SAID FEES TO BE DEPOSITED BETWEEN THE GENERAL AND CAPITAL IMPROVEMENT FUNDS” -- referred to Finance Committee (sponsors - Ms. Ash, Ms. Broyles, Mr. Spiker and Mr. Valdez).

[CA] “A RESOLUTION TO DOCUMENT CITY OF CHEYENNE IMPLEMENTATION OF THE PROVISIONS OF SECTION 414(H)(2) OF THE INTERNAL REVENUE CODE, REGARDING EMPLOYER PICK-UP OF EMPLOYEE RETIREMENT CONTRIBUTIONS TO THE WYOMING RETIREMENT SYSTEM” -- referred to Finance Committee (sponsors - Mr. Collins and Mr. Spiker).

LEASES/CONTRACTS/LEGAL:

[CA] Agreements between the City of Cheyenne and the following Human Services Agencies: Cheyenne Housing Authority; and Peak Wellness Center, Inc., Alcohol Receiving Center. Motion (per Consent Agenda) carried (amount not to exceed \$132,310.00). (#5434 - #5435)

Agreements between the City of Cheyenne and the following Human Services Agencies: American Red Cross; Boys and Girls Club of Cheyenne, Wyoming, Inc.; CASA of Laramie County; Cheyenne Health and Wellness Center (Dental Access and Unified Human Service Eligibility); CIHN; CLIMB Wyoming; COMEA, Inc. (Basic Emergency Shelter Services and Transitional Living); Consumer Credit Counseling Services; Laramie County Community Partnership (Connections Corner and Cheyenne Area Centralized Pharmacy); Meals on Wheels of Cheyenne, Inc.; NEEDS, Inc.; Peak Wellness Center, Inc.; Retired and Senior Volunteer Program; Safe Harbor, A Children's Justice Center; Safehouse/Sexual Assault Services, Inc.; Southeast Wyoming Foster Grandparent Program (Helping Community and Helping Youth); Special Friends of Cheyenne; Stride Learning Center, and Wyoming Senior Citizens, Inc. (2007-2010 1% Sales Tax). Mr. Valdez moved to approve, seconded by Ms. Broyles. Mr. Valdez moved to amend by substitutes, seconded by Ms. Broyles. Upon inquiry, City Attorney Dan White explained he had recommended amending the Governmental Immunity clause (Section #9) for each of the agreements to follow state statutes, and that wording in the proposed substitutes would indicate the City of Cheyenne reserves and retains all defenses and immunities available under the Wyoming Governmental Claims Act, Wyo. Statutes §§ 1-39-101 through 1-39-121. Motion to amend carried. Voting "yes" – all members of the governing body present. Upon inquiry, Mayor Kaysen clarified each agreement contains specific amounts for services and each are for a 2 year period. Upon inquiry, Barb Dorr, City Treasurer, advised funding for human services agreements are pursuant to 1% sales tax money allocated through the 1% resolution, and noted that the previous agenda item is funded through the general fund. She explained the funding amount for those agreements involving general fund money had not been increased from the prior year amount. Vicki Nemecek, Asst. Public Works Director, clarified the dollar amounts for each individual contract for this agenda item may have changed based on the Human Services Advisory Council recommendation, but the overall total dollar amount of \$440,000.00 per year for the agreements had remained the same. Upon inquiry regarding a clerical error relating to a funding amount in one of the agreements, City Clerk Carol Intlekofer clarified the error, that has since been corrected, was contained in a spreadsheet that had been prepared to list all of the entity agencies and funding information, and that the information within that respective agreement was correct. Main motion as amended carried. Voting "yes" – all members of the governing body present. (#5436 - #5458)

Cooperative Agreement between the City of Cheyenne, Wyoming Department of Transportation, and Laramie County for Speer/High Plains Road Interchange Enhancements (~~2007-2010 1% Sales Tax, State Land & Investment Board, American Recovery & Reinvestment Act~~). Mr. Valdez moved to approve, seconded by Ms. Broyles. Mr. Valdez moved to amend to remove the funding sources from the entitlement of the agenda item, seconded by Ms. Broyles. Upon inquiry, Tom Mason, Metropolitan Planning Office Director, confirmed the City is not financially responsible for the enhancements, noting the agreement will provide for enhancements for which the County will provide the funding. He explained that when WYDOT places enhancements in a project they require local government to work with the County and State to provide assistance and maintenance, and that the County has agreed to pay the funding match and the City has agreed to provide the maintenance. Upon further inquiry, he advised the interchange is located about 3 miles (I-25 south) from the City limits. Discussion included the City providing maintenance, following project completion, relative to the site's location in the County. Upon inquiry, Mr. Mason stated maintenance would only be on the enhancement details installed for street lighting, concrete repair, if needed, and sidewalk snow removal. Motion to amend carried. Voting "yes" – all members of the governing body present. Main motion as amended carried. Voting "yes" – all members of the governing body present. (#5459)

[CA] Juvenile Housing Agreement between the City of Cheyenne and Cornerstone Programs Corporation d/b/a Jeffrey C. Wardle Academy. Motion (per Consent Agenda) carried (\$10,000/month). (#5460)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age children who are attending the PEP/TRC Center -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for family counseling for school referred students/families -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age students with disabilities who are attending the PEP/TRC Center -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1, for counseling services to elementary and secondary age children with disabilities on I.E.P.s -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Light Fuel & Power for extension of electrical services to the Construction and Demolition Building at the Landfill (State Land & Investment Board) -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 2 to Contract No. 5206 between the City of Cheyenne and David Ohde & Associates for additional work for the West Lincolnway Streetscaping Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$19,000.00). (#5206)

[CA] Amendment No. 1 to Contract No. 5306 between the City of Cheyenne, Metropolitan Planning Organization, and Western R&D Ltd. for additional services for drainage basin study for the West Allison Road Corridor Plan. Motion (per Consent Agenda) carried (amount not to exceed \$6,980.00). (#5306)

[CA] Contract Modification No. 1 to Contract No. 5376 between the City of Cheyenne and RRT Design and Construction for construction inspection, shop drawing and equipment procurement bid package for the Transfer Station Addition (State Land & Investment Board) -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5305 between the City of Cheyenne, Metropolitan Planning Organization, and Quinby Clune Design to allow for additional design work for the Cheyenne Wayfinding Plan Phase II (MPO/Federal Funding) -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5260 between the City of Cheyenne and Tarco, Inc., for partial reduction of retainage fees for the Dry Creek-Sheridan Reach Flood Control Improvements Project (1% Specific Purpose Sales and Use Tax) -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #M-3-10 for a contract between the City of Cheyenne and Corporate Protective Services (CPS) for Construction of Municipal Building Fire Alarm Project (State Land & Investment Board). Motion (per Consent Agenda) carried (amount not to exceed \$51,000.00). (#5461)

Consideration of Bid #M-6-10 for a contract between the City of Cheyenne and Theatrical Media Services, Inc. for theatrical stage rigging at the Civic Center (State Land & Investment Board). Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Valdez moved to approve in an amount not to exceed \$483,218.00, seconded by Mr. Collins. Mr. Valdez moved to amend that the total bid amount not exceed \$337,397.56, seconded by Ms. Broyles. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#5462)

Consideration of Bid #M-1-10 for a contract between the City of Cheyenne and Reiman Corp., for the East Cheyenne Greenway, Phase IIb, Part 1 Project (1% Specific Purpose Sales and Use Tax). Rick Potter, Cheyenne Branch Manager, S&S Builders, referenced a letter dated September 10, 2009 (on file with City Clerk’s office) that had been submitted to members of the governing body by S&S Builders requesting reconsideration of its proposed awarding of the project to Reiman Corp. Mr. Potter discussed wording of the City’s bid documents relative to an arithmetic error discovered in the bid submitted by Reiman Corp. during the tabulation of bids; bid evaluation process, and potential effect on future bids submitted pursuant to bid document wording that states all proposals must be totaled and in the case of errors or discrepancies, the unit or lump sum prices will govern. Due to the mathematical error reflecting an irregularity in the bid proposal submitted by Reiman Corp., Mr. Potter stated that S&S is the “true low bidder.” Randy Reed, attorney with Dray, Thomson and Dyekman, representing S&S Builders, reviewed the arithmetic (addition) error involving the cost of traffic control (ie: \$44,000 instead of \$400) in the proposal amount contained in the Reiman bid, indicating the sum of the entire unit items was not the same as the bottom line amount; advised if enforcement of unit prices is followed the S&S bid would be the lowest received; discussed bid document wording involving unit prices if discrepancies are discovered, and state law requirements; commented on maintaining the integrity of the competitive bidding process, and spoke in favor of rejecting the bid submitted by Reiman and in support of awarding the bid to S&S. Mr. Valdez reported the agenda item had been introduced and discussed under other items for the agenda at the Finance Committee meeting and provisions of Title 2 of City code had been met. Mr. Valdez moved to accept the bid of Reiman Corp. in an amount not to exceed \$457,082.10, seconded by Ms. Broyles. Discussion followed on maintaining the integrity of the City’s bidding process and adhering to policy, and the arithmetic error discovered by staff in the Reiman bid. Upon inquiry, Rudy Apodaca, Purchasing Director, reviewed the bid tabulation process, at which time the error was discovered, and provided information on the line item amount error vs. the total amount listed on the cover page for the Reiman proposal. Upon inquiry, Dan White, City Attorney, advised to avoid any perceived conflict of interest due to his previous private business relationship with Reiman, the law firm of Hirst & Applegate LLP was retained to review the bids involved. Mandy Good, attorney with Hirst & Applegate, clarified the law firm was retained by the City as an independent party to review the matter, and stated Hirst & Applegate does not represent nor have any conflict of interest involving Reiman Corp. or S&S Builders. Ms. Good responded to query concerning the transposition of the dollar amount submitted by Reiman which involved the traffic control line item, and advised she did not believe the City could be held liable due to the discrepancy relative to awarding the bid to Reiman in the amount of \$457,082.10, which is the amount listed on the front page of Reiman’s bid package. She cited case

law in support of her statements relative to approval of bids following bid opening and acceptance by the City, and indicated the company selected by the City would have a time frame in which to accept the bid in the amount approved or the company could forfeit its bid bond. She further advised that after review of case law, it was her firm's legal opinion that Reiman's bid proposal meets the requirements for consideration of awarding them the bid, and discussed material errors vs. minor defects involving bid proposals. Upon inquiry, Mr. Apodaca provided further information on the Reiman bid; dollar error involving the amount of \$44,000 listed on the unit pricing page for traffic control vs. the apparent amount of \$400.00 that was included in the front page total, and stated the front page dollar amount listed is what is considered the "Invitation to Bid" and that is the number read at bid openings (copies of the Invitation to Bid page (front page) of Reiman's bid package submitted and on file with the City Clerk's office). Further discussion followed on bid document language referencing "unit or lump sum prices," "total bid" and "invitation to bid"; entry error of the number listed in Reiman's bid sheet; errors or discrepancies in bids; preserving the integrity of the City's bid process; state statute provisions; case law; best interests of the City and its constituents, and unit bid amounts vs. total dollar amount contained in Reiman's proposal. In response to inquiry, Mr. Apodaca explained the following choices available to the governing body: (a) accept Reiman's proposal as low bidder, (b) accept S&S Builders' proposal as low bidder, or (c) reject all bids and re-bid the project, and stated bidders are not allowed to change elements of their bids following the bid opening. During discussion Ms. Good responded to inquiries and provided information on bid documents allowing the City to reject all bids; bid specification language; case law that supports the fiduciary duty of the governing body to protect the interests of the public and taxpayers, and ambiguity of wording contained in Section 6. e. of the bid document. Further discussion continued on the bid process and wording of bid documents. Mr. Reed referenced Section 6. e. (bid proposal requirements) of the bid document, stating that all dollar amounts should be added and should correctly total the amount of the bid proposal, and that the sum of the numbers is what must be considered. Discussion continued on the total of unit prices vs. total amount listed on the front page of the bid and bid document wording; being more "tighter" on bid procedures than state law requires; delay of the Greenway project if all bids are rejected, and fiduciary responsibility of the governing body. Upon inquiry, Rich Bolkovatz, Reiman Corp., acknowledged that Reiman did make an addition error and stated Reiman is not asking the City to award them the bid; that the City should look at the best interests of the City. Upon query, Ms. Good advised the integrity of the bidding process is upheld if the amount listed on the front page of Reiman's bid proposal is the proposal bid amount accepted by the City, explaining that Reiman is not being allowed to change their bid information as submitted. Discussion continued. Upon inquiry, Mr. Apodaca explained when the error was discovered, staff brought the issue to the attention of the City's legal staff and there was no communication with Reiman until after that time, which was after the bid opening. Mr. Potter reviewed the different types of bids submitted for City projects, stating some involve a lump sum bid and others involve a total bid amount. Comments continued and included verification through Mayor Kaysen that the motion on the floor was to accept the bid in an amount not to exceed \$457,082.10. Sara Vasquez, Purchasing Dept., discussed the total amount reflected on the itemized bid sheets vs. the front page of the bid proposal relative to future purchasing tabulation procedures. Motion to accept the bid from Reiman Corp. in an amount not to exceed \$457,082.10 failed. Voting "yes" – Mr. Pierson, Mr. Spiker and Mr. Valdez. Voting "no" – Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne and Mayor Kaysen. Mr. Brown moved to approve the bid submitted by S&S Builders in an amount not to exceed \$477,619.66, seconded by Ms. Broyles. Pursuant to comments involving acceptance of the bid in a "not to exceed" amount relative to unit prices, Mr. Potter provided information on unit prices; change order process per directive by the City to add services under a contract, and consideration of engineer's estimates of project materials as being accurate when preparing bid proposals. Mr. Apodaca clarified a contract modification would be submitted for approval if any changes are proposed to be added to bid services after the contract had

been awarded. Mr. Pierson moved to adjourn into executive session to discuss an item involving possible litigation, seconded by Mr. Spiker. Dr. Rinne raised a point of information on the intended purpose of the executive session with Mr. Pierson clarifying his motion is specific to the current agenda item. Motion to move into executive session failed (2/3rd's affirmative vote required). Voting "yes" – Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mayor Kaysen. Voting "no" – Mr. Brown, Ms. Broyles, and Mr. Valdez. Discussion followed on the pending motion, rejecting all bids, and potential legal ramifications. Motion to accept the bid submitted by S&S Builders failed (due to a tie vote). Voting "yes" – Mr. Brown, Ms. Broyles, Mr. Collins and Dr. Rinne. Voting "no" – Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Mr. Pierson moved to reject all bids, seconded by Mr. Spiker. It was clarified there were other bidders who had submitted proposals for the project. Mr. Pierson modified his motion to reject all bids to include "and to re-issue the bid as soon as possible", with concurrence by Mr. Spiker as second to the motion. Upon request, Mayor Kaysen recited the names of all bidders who had bid on the project. Motion to reject all bids and to re-issue the bid as soon as possible carried. Voting "yes" – all members of the governing body present with the exception of Mr. Collins and Dr. Rinne voting "no".

APPOINTMENTS:

Appointment of Holly A. Hansen, and Ronald J. Jeffrey to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Collins moved to approve, seconded by Mr. Spiker. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

OTHER CITY BUSINESS:

Dave Hallam commented on the east/west crosswalk located near Cole Elementary School and lack of a north/south crosswalk for use by students, and provided a map (on file with City Clerk's office) showing the current crosswalk and school location. He requested a north/south crosswalk be added for safety purposes. Upon inquiry, Doug Vetter, City Engineer, provided information on prior requests for an additional crosswalk in the area, noting the difficulty in implementing crosswalks in every direction relative to traffic issues, and reviewed area signage. Mayor Kaysen requested Mr. Vetter communicate with the school district's committee concerning the request. During comments, Tom Mason, MPO Director, advised the MPO and Parks and Recreation Dept. are currently reviewing walking routes for all schools and a pedestrian plan. Mr. Hallam also questioned rates assessed on water/sewer bills he receives for tenant properties. Mayor Kaysen advised he would review the matter with Board of Public Utilities' representatives and a response would be provided to Mr. Hallam.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:14 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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